

the County; 5. Complaints by Plaintiff relating to sexual harassment, discrimination, or workplace retaliation; 6. Workplace investigations involving alleged misconduct by Plaintiff; 7. Workplace investigations involving allegations of misconduct made by Plaintiff; 8. Plaintiff's wage records for March 2024 – June 2025. The Court has reviewed each of these categories in light of the evidence and argument provided in the Declaration of Ashley Riser to determine whether good cause exists for each category. Given Plaintiff's allegations, the Court finds that the information and documents sought are material to Plaintiff's claims or Defendant's defenses. The documents are relevant and would either be admissible or could potentially lead to the discovery of admissible evidence.

Protective Order: Siskiyou County asks for any disclosure of records to be limited by a new proposed protective order. Defendant City of Redding asks the Court to permit disclosure under the protective order already entered in this case on December 12, 2024. Neither of the parties make any substantive argument regarding why the current protective order is or is not sufficient. The parties are directed to meet and confer on this issue, and to provide a stipulation and order to either the current protective order, or Siskiyou's proposed protective order, if possible. If the issue requires Court intervention, the matter will be decided at the *in-camera* review prior to disclosure of records.

Witness Interviews: The City's Motion and Reply contain a brief request – presumably for a Court order - to ask County witnesses about the content of the released material, and to conduct "interviews" of any potential witnesses identified in the personnel records who may have been involved, to obtain context or clarify certain facts. County of Siskiyou opposes this request. The Court declines to make such an order.

The Motion is **GRANTED**. A proposed order was lodged with the Court and will be executed. The Court will conduct an *in-camera* review of the documents prior to their release. All released documents will be designated Confidential under a protective order as detailed above. An appearance is necessary on today's calendar to schedule the *in-camera* review.

WYNHOFF VS. CITY OF REDDING

Case Number: 24CV-0204924

Tentative Ruling on Motion to Compel Compliance with Nonparty Subpoena: Defendant City of Redding moves for an order compelling nonparty Brett Leonard (a former RPD officer) to comply with Defendant's deposition subpoena for production of business records. The Motion is made pursuant to CCP §§ 1987.1, 2020.010, 2020.220, 2020.410, 2025.480 and CRC 3.1345(b)(1) on the grounds that Leonard has failed to produce any responsive documents or respond at all to the subpoena. City also moves for an order of contempt and for the statutory award of \$500 for Mr. Leonard's disobedience of the Subpoena. No opposition or motion to quash has been filed.

Service of the Motion: The instant Motion was served on the Nonparty Subpoenaed Witness by email only. California Rule of Court 3.1346 requires written notice and all moving papers supporting a motion to compel an answer to a deposition question or to compel production of a document or tangible thing from a nonparty deponent must be personally served on the nonparty deponent unless the nonparty deponent agrees to accept service by mail or electronic service at an address or electronic service address specified on the deposition record. There is no evidence in the record that Brett Leonard agreed to accept service of the Motion by email.

Service of the Subpoena: The Deposition Subpoena for Production of Business Records to Brett Leonard is attached to the Motion as Exhibit C. The proof of service is blank. The Declaration of Nathan Jackson, an attorney representing the City of Redding, states that Mr. Leonard agreed to email service of the subpoena, and the subpoena was served via email at Mr. Leonard's RPD work email address. (Decl. Jackson ¶ 4-5.) This is not sufficient proof of service. A Deposition Subpoena must be personally served. CCP § 2020.220. Counsel's representation that a nonparty agreed to email service of a subpoena at a work email address – where he does not currently work, is not sufficient to satisfy the notice requirement.

Defendant's Motion to Compel Compliance with Nonparty Subpoena is **DENIED**. A proposed order has been lodged and will be modified.

9:00 a.m. Review Hearings

B.C. VS. MOCK

Case Number: 22CV-0201088

This matter is on calendar for review to vacate the existing September 3, 2025 Court Trial and to reset a new Court Trial date after Defendant's criminal trial. The parties are ordered to appear today to vacate and reset the trial date.

CAPITAL ONE, N.A. VS. GRAVES

Case Number: 24CVG-01354

This matter is on calendar for review regarding status of the case. The matter is not at issue. This action was filed September 16, 2024. No proof of service of summons has been filed. An OSC re Sanctions is set for hearing today at 8:30 a.m. Failure to appear today will result in the issuance of an Order to Show Cause re Dismissal.

LVNV FUNDING LLC VS. PADRON

Case Number: 24CVG-01871

This matter is on calendar for review regarding status of conditional settlement. A Conditional Notice of Settlement of Entire Case was filed February 6, 2025. The notice sets forth that the settlement is conditional on the satisfactory completion of specified terms that are not to be performed within 45 days of the date of settlement, and that a request for dismissal will be filed no later than February 7, 2026. Due to limited court budgets and reduced court staffing, the Court does not have staffing to monitor a case to assure dismissal and closure of the court file. The parties are directed to resolve the case in a way which results in a conditional dismissal; i.e., a stipulation that the dismissal may be set aside and judgment entered if there is a default in completing the terms of the settlement. This matter is continued to **Monday, September 15, 2025, at 9:00 a.m. in Department 64** for review regarding conditional dismissal. No appearance is necessary on today's calendar.

RIVERA, ET AL. VS. NISSAN NORTH AMERICA, INC.

Case Number: 24CV-0205714

This matter is on calendar for status and resetting of the trial date. The Court vacated the July 8, 2025 trial date on its own motion due to unavailability of a courtroom. The Court designates this matter as a plan II case and intends to set the matter for trial no later than February 10, 2026.